

U.S. DEPARTMENT OF AGRICULTURE
WASHINGTON, D.C. 20250

DEPARTMENTAL REGULATION	NUMBER: DR 5100-003
SUBJECT: Real Property Lease Contracting Officer Warrant Program	DATE: November 18, 2024
OPI: Office of Property and Environmental Management	EXPIRATION DATE: November 18, 2029

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1. PURPOSE

This Departmental Regulation (DR) establishes the United States Department of Agriculture's (USDA) policy for its Real Property Lease Contracting Officer (LCO) Warrant program.

2. SCOPE

This DR applies to all USDA Mission Areas, agencies, and staff offices that seek to award real property leases using GSA delegated authority or who obtain independent authority from Congress.

3. SPECIAL INSTRUCTIONS/CANCELLATIONS

- a. This DR supersedes DR 5100-003, *Real Property Leasing Officer Warrant System*, dated June 6, 2023.

- b. This DR is effective immediately when published.
- c. All Mission Areas, agencies, and staff offices will align their policies and procedures with this DR within 6 months of the publication date.
- d. This DR will not be interpreted to conflict with the rights of an employee under the law, including:
 - (1) The Federal Service Labor-Management Relations Statute ([5 U.S.C. 7101 - 7135](#))
 - (2) Applicable collective bargaining agreements;
 - (3) Adverse actions ([Title 5, Part 752](#));
 - (4) Prohibited Personnel Practices (Whistleblower Protection Act), [5 U.S.C. 2302 b \(8-9\)](#); and
 - (5) Individual right of action in certain reprisal cases (Whistleblower Protection Enhancement Act), [5 U.S.C. 1221 \(g\)](#).
- e. This DR will not be interpreted to conflict with any rights accorded to a union representative under the Federal Service Labor-Management Relations Statute when communicating as a union representative.
- f. The implementation of this DR may be subject to collective bargaining, the results of which may modify the policy and/or procedures stated or implied herein, as permitted by law.

4. POLICY

- a. The Director of the Office of Property and Environmental Management (OPEM) is the Head of Contracting Activity (HCA) for the USDA real property lease contracting program.
- b. The Director is the Appointing Official (AO) for USDA LCO warrants for the leasing of real property.
- c. The Director appoints the USDA Acquisition Career Manager (ACM), who approves [Real Property Leasing Certification Program](#) (LCP) certifications.
- d. The Agency Real Property Director (ARPD), ACM, Chief of the Property Management Division (PMD), and AO review and approve candidates.

- e. Mission Areas, agencies, or staff offices are not permitted to issue their own LCO warrants.
- f. USDA Warrant Levels. USDA issues three levels of LCO warrants based on lease acquisition thresholds set forth in [General Services Administration Acquisition Manual \(GSAM\) 501.603-1, General](#):
 - (1) Simplified. LCOs with a simplified level warrant are limited to lease actions that do not exceed:
 - (a) The Simplified Lease Acquisition Threshold (SLAT), and
 - (b) The Intermediate Lease Acquisition Threshold (ILAT).
 - (2) Intermediate. LCOs with an intermediate level warrant are limited to lease actions that do not exceed the ILAT.
 - (3) Senior. LCOs with a senior level warrant are unlimited.
- g. Tenant improvements are excluded from the SLAT calculation if they are paid by lump sum to the lessor because USDA is paying those costs up front. Tenant improvements are included in the SLAT calculation if they are amortized into the lease.
- h. Each lease action (award, amendment, other) is considered separately when determining the warrant level needed to sign for it.
- i. USDA LCO warrants:
 - (1) Do not have an expiration date;
 - (2) Cannot be transferred to another person;
 - (3) Remain active if an LCO transfers to another USDA agency or position that requires an LCO warrant, and
 - (4) May be used to execute a real property lease action by an LCO until:
 - (a) An LCO fails to maintain an active LCP certification;
 - (b) An LCO moves to another USDA position that does not require an LCO warrant;
 - (c) An LCO leaves USDA Federal service; or
 - (d) The warrant is suspended or revoked.

- j. The signature authority on LCO warrants also grants the authority to execute other real property instruments such as Occupancy Agreements, permits, and licenses if they:
 - (1) Specifically relate to real property; and
 - (2) Do not exceed the warrant authority for leases.
- k. LCO Warrant Nomination
 - (1) LCO candidates must be LCP certified per GSA requirements (including mandatory education and experience) prior to nomination for a USDA LCO warrant.
 - (2) USDA LCO warrants will only be issued to candidates in the [*Classification Standard for Realty Series, GS1170*](#), issued by the Office of Personnel Management.
 - (3) Nominations for a USDA LCO warrant include proof that the candidate's LCP certification is active. The candidate's active LCP certification is equal to or greater than the warrant level sought.
 - (4) The Agency Real Property Director (ARPD), as defined in [*DR 5100-004, Real Property Management*](#), signs the nomination.
 - (5) Nominations document the business need to support the warrant level requested. The candidate can maintain a higher LCP certification, but that does not guarantee or justify a higher warrant level.
 - (6) Nominations document the candidate's educational qualifications showing either:
 - (a) A baccalaureate degree or higher; or
 - (b) A minimum of 24 semester hours of business credits from an accredited college or university in the fields of accounting, business, finance, law, contracting, economics, industrial management, marketing, purchasing, quantitative methods, project management, or organization and management.
 - (7) Nominations document the candidate's years of real property lease contracting experience, depending on the warrant level sought:
 - (a) Simplified level candidates have at least 2 years of leasing experience;
 - (b) Intermediate level candidates have at least 3 years of leasing experience; or
 - (c) Senior level candidates have at least 4 years of leasing experience.
 - (8) The ARPD, ACM, Chief of PMD, and AO review and approve candidates.

1. LCO Warrant Maintenance

- (1) An LCO maintains the signature authority to use the LCO warrant by completing Continuous Learning Point (CLP) activities.
- (2) The ACM awards CLPs for the successful completion of CLP activities.
- (3) The ACM determines the CLP value of approved maintenance activities.
- (4) The LCO obtains 100 CLPs every 2 years from training and supplementary activities. A minimum of 40 of these CLPs come from core leasing training in the following areas:
 - (a) Real property leasing;
 - (b) Real property management;
 - (c) Real estate;
 - (d) Project management;
 - (e) Construction contracting;
 - (f) Acquisition; and
 - (g) Leadership (a maximum of 20 CLPs in any CLP activity period)
- (5) The remaining 40 CLPs can be other training or higher education from the above listed areas or from the following supplementary real property related activities:
 - (a) Work in professional organizations (a maximum of 20 CLP in any CLP activity period)
 - (b) Publication of articles or policy (a maximum of 20 CLP in any CLP activity period); and
 - (c) Experiential learning such as:
 - 1 Mentoring (a maximum of 20 CLP in any CLP activity period), and
 - 2 Details (a maximum of 40 CLP in any CLP activity period).
- (6) ARPDs ensure that the courses and supplementary real property activities being used to support a warrant application are approved prior to expending funds for them.

- (7) Mission Areas, agencies, and staff offices must consult with the ACM for an official determination if there is uncertainty about whether a course or supplementary real property activity will count toward warrant maintenance or a core leasing requirement.
- m. LCO Warrant Suspension and Revocation
 - (1) The AO or ARPD may temporarily suspend or permanently revoke a warrant. Notification must be in writing.
 - (2) The ARPD must consider issuing progressive discipline to any LCO who has their warrant suspended or revoked in consultation with their Employee Relations Specialist.
 - (3) Mission Areas, agencies, and staff offices may conduct their own internal review to determine if suspension or revocation is appropriate or they may submit a request to the ACM to conduct a review.
 - (4) Mission Areas, agencies, and staff offices will notify the ACM immediately if they suspend or revoke an LCO's warrant.
 - (5) Examples of reasons for warrant suspensions or revocations include, but are not limited to, if the LCO:
 - (a) Fails to comply with applicable laws, regulations, and codes of conduct for Federal employees;
 - (b) Fails to maintain an active LCP certification;
 - (c) Fails to meet minimum performance standards for the position;
 - (d) Is reassigned to a position that does not require a warrant;
 - (e) No longer has an organizational need for the warrant; or
 - (f) Separates from the service of USDA.
- n. LCOs will ensure that all actions executed using their LCO warrant do not exceed the limitations specified on the warrant or appointment letter.

5. ROLES AND RESPONSIBILITIES

a. The Director, OPEM will:

- (1) Serve as the HCA for the USDA real property lease contracting program and the AO for USDA LCO warrants;
- (2) Appoint the ACM;
- (3) Review and approve candidates for an LCO warrant after receipt of an approved warrant nomination from the Chief, PMD; and
- (4) Suspend or revoke any USDA issued LCO warrant as appropriate.

b. The Chief, PMD, will:

- (1) Review and approve candidates for an LCO warrant after receipt of an approved warrant nomination from the ACM;
- (2) Submit approved warrant nominations to the AO; and
- (3) Respond to requests for exceptions to any policy set forth in this DR.

c. The ACM will:

- (1) Review CL requests and determine the CLP value of approved maintenance activities;
- (2) Review and approve LCP CL submissions and certifications; and
- (3) Review and approve candidates for an LCO warrant after receipt from an approved warrant nomination from the ARPD.
- (4) Submit approved warrant nominations to the Chief, PMD.

d. Mission Area, Agency, and Staff Office Heads will:

- (1) Consult with the ACM to determine what courses or activities will count towards warrant qualification or maintenance; and
- (2) Notify the ACM immediately if they suspend or revoke an LCO's warrant.

e. ARPDs will:

- (1) Approve and sign all LCO warrant nominations requests and submit them to the ACM;

- (2) Ensure that the courses and supplementary real property activities being used to support a warrant application are approved prior to expending funds for them; and
- (3) Suspend or revoke any USDA issued LCO warrant within their Mission Area, agency, or staff office, as appropriate.
- (4) Consider issuing progressive discipline to any LCO who has their warrant suspended or revoked.

f. LCOs will:

- (1) Maintain an active LCP certification for their signature authority to remain valid; and
- (2) Not exceed the limitations specified on their warrant or appointment letter.

6. POLICY EXCEPTIONS

Mission Area, agency, and staff office heads will submit requests for exceptions to any policy statement documented in this DR to the Chief, PMD, Office of Property and Environmental Management, USDA, 1400 Independence Avenue SW, Washington DC 20250, or OPEM.RealProperty@usda.gov. Requests must include adequate documentation and a justification stating why the policy cannot be met as written.

7. INQUIRIES

Mission Area, agency, and staff office heads will direct all inquiries about this DR to the Chief, PMD, Office of Property and Environmental Management, USDA, 1400 Independence Avenue SW, Washington DC 20250, or 202-205-4008, or OPEM.RealProperty@usda.gov.

-END-

APPENDIX A

ACRONYMS AND ABBREVIATIONS

ACM	Acquisition Career Manager
AO	Appointing Official
ARPD	Agency Real Property Director
CLP	Continuous Learning Point
DR	Departmental Regulation
FAC-C	Federal Acquisition Certification in Contracting
FAR	Federal Acquisition Regulation
GSA	General Services Administration
GSAM	General Services Administration Manual
HCA	Head of Contracting Activity
ILAT	Intermediate Lease Acquisition Threshold
LCO	Lease Contracting Officer
LCP	Leasing Certification Program
OFPP	Office of Federal Procurement Policy
OMB	Office of Management and Budget
OPEM	Office of Property and Environmental Management
OPM	Office of Personnel Management
PMD	Property Management Division (within OPEM)
SLAT	Simplified Lease Acquisition Threshold
TLCV	Total Lease Contract Value
USDA	United States Department of Agriculture
WPA	Whistleblower Protection Act of 1989
WPEA	Whistleblower Protection Enhancement Act of 2012

APPENDIX B

DEFINITIONS

Acquisition Career Manager (ACM). The one individual within USDA, appointed by the AO, responsible for ensuring compliance with acquisition workforce certification policy, implementation procedures, internal controls and conducting periodic reviews.

Appointing Official (AO). The Director of OPEM, or designee, is the AO and the only USDA individual with the signatory authority to issue a warrant.

Agency Real Property Director (ARPD). The lowest level official in the Mission Area, agency, or staff office with full responsibility over the Mission Area, agency, or staff office's real property portfolio.

Continuous Learning Point (CLP). A numerical value assigned by the ACM to continuous learning activities.

Head of Contracting Activity (HCA). The individual appointed through the authorities of the Secretary of Agriculture responsible for establishing acquisition policies, procedures, and guidance to the USDA acquisition workforce.

Intermediate Lease Acquisition Threshold (ILAT). The dollar amount set by the General Services Administration (GSA) in [GSAM 501.603-1](#) for intermediate level warrants. It is based on Total Lease Contract Value (TLCV) as defined below.

Leasing Certification Program (LCP). GSA's established set of instructions governing how the federal agencies ensure that Lease Contracting Officers meet the requirements of the Office of Federal Procurement Policy (OFPP) Memorandum, *Revisions to the Federal Acquisition Certification in Contracting (FAC-C)*.

Lease Contracting Officer (LCO). A USDA employee appointed by the Appointing Official or designee, granted signatory power to execute, modify, or terminate lease contracts using delegated authority through the Director, OPEM and the Secretary of Agriculture, in accordance with Federal acquisition and property laws and regulations.

Prospectus Threshold. Annually adjusted limit to restrict appropriations on real property projects over a certain amount. Refer to the GSA website for current threshold, [Annual Prospectus Thresholds](#).

Simplified Lease Acquisition Threshold (SLAT). The simplified acquisition threshold (see *Federal Acquisition Regulation (FAR) 2.101*), when applied to the average annual rent for the term of the lease, including option periods and excluding the cost of services. GSA further limits simplified warrants to the Intermediate Lease Acquisition Threshold since it is possible to have a lease that doesn't exceed the SLAT, yet it does exceed the ILAT.

Total Lease Contract Value (TLCV). The sum of rent payments to be paid during the term of the lease including options, excluding operating costs and real estate taxes. For lease amendments, the total lease contract value does not include the previously awarded lease amounts; it only includes the dollar amount of the amendment.

Warrant. A delegation which defines the extent of authority vested in an individual to execute, modify, and terminate leasehold interests in real property; specifically, the signatory authority of an individual to obligate funds and contractually commit the Department.

APPENDIX C

AUTHORITIES AND REFERENCES

Federal Labor Relations Authority, Federal Service Labor-Management Relations Statute ([5 U.S.C. 7101 - 7135](#))

GSA, [Leasing Certification Program](#) (website)

GSA, [General Services Acquisition Manual \(GSAM\)](#)

OMB, Memorandum for Chief Acquisition Officers and Senior Procurement Executives: [Revisions to Federal Acquisition Certification in Contracting](#), May 7, 2014

OPM, Adverse Actions, [Title 5, Part 752](#)

OPM, [Classification Standard for Realty Series, GS1170](#)

OPM, Individual right of action in certain reprisal cases, [5 U.S.C. 1221 \(g\)](#)

OPM, Prohibited Personnel Practices, [5 U.S.C. 2302 b \(8-9\)](#)

USDA, [DR 5100-004](#), *Real Property Management*, February 9, 2023